Topic 22 — Constitutional Philosophy

Covers syllabus (click to expand)

Constitutionalism | Constitutional Morality | Rule of Law | Due Process of Law | Procedure (प्रक्रिया) Established by Law | Separation of Powers | Checks and Balances | Judicial Supremacy | Parliamentary Sovereignty | Constitutional Supremacy | Welfare State | Socialism | Secularism | Democracy | Republic | Justice (social, economic, political) | Liberty (thought, expression, belief, faith, worship) | Equality (status & opportunity) | Fraternity & Dignity | Unity and Integrity of the Nation

Sources baked in: Preamble, Arts. 14–18 / 19 / 25–28 / 37–38 / 51A, *Bommai*, Ambedkar CAD, 42nd/44th, UPPCS 2018–2025 **Weight:** ★★★ — Indian secularism = **positive / equal respect**, not a US wall (*Bommai*); socialism = **democratic / mixed**, not Marxism; welfare = **Art. 38 + Part IV**; Preamble **Justice 3 · Liberty 5 · Equality 2 · Fraternity 1**; "Federal" **not** in Preamble; 42nd added **Socialist + Secular** (not Sovereign/Republic) **Last verified:** August 2026 **Current Affairs:** *Bommai* secularism still the 356 fact; Preamble words themselves are 1976 text, not a yearly rewrite

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2023	SC: NCT **services** (except public order/police/land) with the elected government. Union **Ordinance/Act 2023** tried to park services with the LG	2018 idea = LG is not a parallel CM. 2023 = the *services* fight. Don't freeze the statute as if the judgment vanished
2021	GNCTD **Amendment Act** enlarges the LG	Statutory push against the 2018 judgment — CA, not a new article
2018	*NCT Delhi* (aid-and-advice) · *Navtej* (नवतेज जौहर) (§377) · *Sabarimala*	Constitutional morality ≠ majority custom
2017	*Puttaswamy*: privacy = FR; *ADM Jabalpur* majority called wrong	Due-process content of Art. **21** survived Emergency's worst case
2015	**NJAC** (99th) struck	Review of an *amendment* = constitutional supremacy, not "judicial coup" as a syllabus answer
1994	*Bommai*: secularism = Basic Structure	A communal State government can justify **356**. floor test; don't dissolve first
1978	*Maneka Gandhi (गांधी)*	The due-process *turn*. Art. 21 words unchanged

Year	What happened	What you mark
1978	**44th (44वां संशोधन) Amendment** (44वां संशोधन): Art. **38(2)** inequalities; property out of Part III (मौलिक अधिकार)	Welfare clause thickened; socialism ≠ Art. 31 forever
1976	**42nd** (42वां) prints **Socialist, Secular, integrity**	Names the ideals; does **not** invent Arts. 25–28 or Part IV (नीति निर्देशक)
1973–80	*Kesavananda* (केशवानंद भारती 1973) → *Minerva*	Parliamentary sovereignty **refused**; constitutional supremacy **locked**. Secular character already in the BS *list*
1963	**16th Amd** — sovereignty and integrity in Art. **19** restrictions + 3rd Schedule oaths	Integrity as a *liberty bound* before the Preamble (प्रस्तावना) printed the word (1976)

Frame

First half: **how the Constitution ties the State down**. Second half: what the Preamble *ideals* mean. Counts (already locked): Justice **3** · Liberty **5** · Equality **2** · Fraternity **1**; "Federal" **not** in the Preamble; 42nd = Socialist + Secular.

Constitutionalism

Limited government by a constitution. The State may do only what the Constitution allows, by the procedure it allows. Having a booklet ≠ constitutionalism.

- India has a **written higher law**: the Constitution ranks above ordinary statutes, under Articles **13** and **245**.
- **Fundamental Rights** (मौलिक अधिकार) (Part III) create a zone that the State must justify entering before it can act.
- An **independent judiciary** (स्वतंत्र) with the power of **judicial review** can say *no* to a statute, an executive order, or — after 1973 — even a destructive constitutional amendment.
- **Separation of powers and checks** ensure that power is not concentrated in one pocket.
- The amending power has a **ceiling**: the Constitution's identity cannot be rewritten, as *Kesavananda* held — this is constitutionalism operating against **Parliament itself**.
- Constitutionalism is **not** the same as merely *having* a constitution — a one-party charter with no judicial review is a booklet, not constitutionalism.
- India's version of this idea is **constitutional supremacy** (see the card below), not Dicey's parliamentary sovereignty.
- The UK shows constitutionalism **without** one supreme coded document: conventions, statutes, and courts still bind the Crown-in-Parliament *politically*, even though courts do not strike primary Acts in the classic Dicey picture.
- Ambedkar told the Constituent Assembly that a constitution is only as good as the people who **work** it — that is why **constitutional morality** sits right next to this idea.

- Austin described the Constitution as a "seamless web" aiming at social revolution; Indian constitutionalism combines **brakes** (Fundamental Rights) with **goals** (Part IV), not brakes alone.
- *ADM Jabalpur* (**1976**) is the anti-example: the booklet was still there, but constitutionalism failed in practice. *Puttaswamy* (**2017**) is the Court's later correction.

> **Logic:** "Written = constitutionalism" is false. The UK is unwritten, still a constitutional *practice*. Some written charters are not.

Constitutional Morality

Fidelity to the Constitution's norms, not to the street's "morality".Not a phrase in the text. No article, no schedule, no 42nd insert.

- The historian **George Grote**, writing on Athenian history (इतिहास), coined the idea; **Ambedkar** (अम्बेडकर) brought it into the Constituent Assembly Debates on **4 November 1948**.
- Grote's idea was that the majority **restrains itself** and respects **forms and institutions**, instead of ruling by mood.
- Ambedkar warned that constitutional morality is **not a natural sentiment** — it has to be **cultivated**, because without its diffusion a constitution is only a parchment.
- Courts have used it to mean holding to the Constitution's own **norms** — representative government, plurality, and dignity — even when the crowd wants otherwise.
- It is **not** the same as **public morality** or **social morality** under Articles **19** and **25**, which are *restriction* grounds the State cites (साइट्स) to limit a right. Constitutional morality, by contrast, can *strike down* a majoritarian custom.
- It is also **not** a minister's private virtue, and it is not simply "the Court preaching morals," a wrong syllabus shorthand.

SC colour (holdings in one line) - *Manoj Narula* **2014** — PM/CM should not load the Council with people facing serious criminal clouds — constitutional morality of **office** - *Govt. of NCT of Delhi v UOI* **2018** (5-j.) — Delhi is not a full State, but the LG is **not** a parallel CM. **Aid and advice** of the elected Council binds the LG except where the Constitution/statute gives him a real discretion - *Navtej Singh Johar* **2018** — IPC **§377** (consensual same-sex) struck. Constitutional morality ≠ majoritarian morality - *Indian Young Lawyers (Sabarimala)* **2018** — exclusion of women 10–50 struck (as then held). Equality over a custom sold as "morality" - *Joseph Shine* **2018** — IPC adultery struck; women are not the husband's property - NCT Delhi (services) **2023** (5-j.) — **services** (except public order / police / land) with the **elected government**, not the LG

NCT CA: GNCTD **Amendment Act 2021** tried to enlarge the LG. SC **2023** still gave services to the elected side. Union then used an **Ordinance / GNCTD (Amendment) Act 2023** to put services back with the LG. Mark the *tug* — don't freeze a 2026 statutory last word.

> **Logic:** Constitutional morality ≠ 42nd / Art. 51A. ≠ public morality in Arts. 19/25.

Rule of Law

A.V. Dicey, *Introduction to the Study of the Law of the Constitution* (1885). Three limbs — write all three, then **cut the third for India**.

#	Dicey (UK)	India
1	Supremacy of law — **no arbitrary** power	**Yes.** Art. **14**; no one above the Constitution; executive needs legal authority (*Ram Jawaya* line)
2	**Equality before the law** — officials like private persons in ordinary courts	**Yes.** Art. **14** "equality before law" is the Dicey phrase. "Equal protection" is the **US** add-on
3	Constitution is the **result of ordinary law**; rights are from court rulings, not a Bill of Rights	**No.** India has a **written** supreme Constitution + **justiciable FRs**. Limb 3 is the UK story

Indian working facts

- **Article 14** guarantees equality, **Article 21** (अनुच्छेद 21) guarantees liberty, and **Articles 32 and 226** give the remedy of judicial review to enforce both.
- In *Indira Nehru (नेहरू) Gandhi v Raj Narain* (**1975**), the Supreme Court treated the **Rule of Law**, along with free and fair elections, as part of the Basic Structure — so Parliament cannot *amend away* the Rule of Law.
- Even in the UK, critics like Jennings argued that Dicey's third limb was only a Victorian snapshot of his time — Jennings is not an Indian authority; use him only to remember that **limb 3 is the shaky one**.
- Rule **by** law is a trap phrase: a statute can still be used as a whip by the ruler. The Rule of Law instead asks whether that statute itself is **subject to** the Constitution.

Exceptions — they are islands, not a repeal

- **Article 361** says the President and Governors are **not answerable to any court** for their official acts, though a civil suit against a Governor is possible after he leaves office, as provided.
- **Articles 105 and 194** privilege speech and votes cast inside the House — ordinary courts do not try that speech as defamation.
- **Article 33** lets Parliament **restrict the Fundamental Rights** of the armed forces and police to ensure discipline.
- **Article 34** permits Parliament to indemnify acts done under martial law.
- **Articles 31A to 31C** save certain agrarian and 39(b)/39(c) laws from challenge under Articles 14/19; the 42nd Amendment's attempt to stretch Article 31C to all Directive Principles (राज्य के नीति निदेशक तत्व) was struck down in *Minerva Mills*.
- Diplomatic immunity and the law of contempt are further holes that the Constitution itself has cut into strict court-equality.

Art. **14** still allows **reasonable classification**; it forbids **class legislation**. That is how RoL and affirmative action sit in the same article.

PIL expands *access*. PIL is essential for the rule of law because it gives weaker sections a path to court — assertion and reason both hold, and the reason explains the assertion.

> **Logic:** Dicey's three limbs do **not** all apply in India. **Limb 3 fails.**

Procedure Established by Law vs Due Process of Law

Two syllabus bullets. **One fight.**

	Procedure established by law	Due process of law
Text	Art. **21** — still these words	US **5th** (federal) and **14th** (states) Amendments
Borrowed from	**Japan** (Art. 31)	US Constitution
Classic meaning	If a **validly enacted** law lays down a procedure, deprivation is legal (**lex**)	Courts test the **procedure** (प्रक्रिया) *and* whether the law itself is fair (**jus**)
Two US faces	—	**Procedural** due process = hearing, notice, unbiased judge. **Substantive** = even a tidy procedure cannot save an unjust law
CAD	**B.N. Rau** (Constitutional Adviser) had seen US courts strike New-Deal-type laws (*Lochner* era). He warned "due process" would let the SC kill **socio-economic** legislation. Draft therefore took **Japan Art. 31**	The words "due process" were **deliberately not** written

Natural justice (the Indian working of *procedural* fairness — not a separate syllabus heading)

- The **hearing** rule, *audi alteram partem*, requires that the other side be heard before a decision is taken against it.
- The **no-bias** rule, *nemo judex in causa sua*, disqualifies a person from being a judge in his own cause.
- The **speaking-order** rule requires reasons to be given; after *Maneka*, a passport impounding, a detention, or a blacklisting order without stated reasons is usually struck down on this ground.

Maneka facts (so the case is not a name-drop): passport impounded **without** giving her a chance to be heard. SC: Art. 21 procedure must be **fair, just and reasonable**; Arts. **14, 19, 21** move together (**golden triangle**). A law that is arbitrary fails **14**, and therefore fails **21**.

The cases

- In *A.K. Gopalan* (**1950**), which tested the Preventive Detention Act, the Court held that Article 21 is satisfied by **any** procedure laid down in a competent law, and it read the Fundamental Rights in **silos** — Article 21 was not tested against Articles 19 or 14.
- In *Maneka Gandhi* (**1978**), the Court held that the procedure must be **fair, just, and reasonable** — the "golden triangle" of Articles 14-19-21. A **valid law** (*lex*) was still needed, but **fairness** (*jus*) was now added on top.

- In *Francis Coralie Mullin* (**1981**), the Court held that Article 21 protects **dignity**, not mere animal existence — livelihood, health, shelter, and privacy were later read into the same article.
- In *ADM Jabalpur* (**1976**), the majority held that even the habeas corpus (बन्दी प्रत्यक्षीकरण) remedy under Article 21 could be suspended during an Emergency; **Justice H.R. Khanna** alone dissented.
- In *Puttaswamy* (**2017**), the Court held that privacy is a Fundamental Right, and it also held that the majority in *ADM Jabalpur* had been wrong.

After *Maneka*, Indian courts do **both** procedural and substantive fairness under 14/21. That is due-process *content*. The **text** of 21 is still "procedure established by law".

** traps**

- Art. 21 was **not** amended to say "due process".
- *Maneka* is **not** a US Fifth Amendment transplant by Parliament.
- *Gopalan* is **not** "still good law" on the silo/fairness point. The *lex* requirement (there must be a law) **survives**.
- What was later *read into* 21: livelihood, privacy, health, shelter, speedy trial. This card is the **standard of review** (fair, just, reasonable) — not the full 21 catalogue.

Separation of Powers

Montesquieu, *The Spirit of the Laws* (**1748**): legislature / executive / judiciary — so that power is not concentrated.

Where the Constitution parks each organ (not a US-style exclusive chapter)

- **Article 53** vests the executive power of the Union in the **President**, who exercises it on the aid and advice of the Council of Ministers under **Article 74**.
- **Article 79** vests legislative power in Parliament, which consists of the President, the Rajya Sabha (राज्यसभा), and the Lok Sabha (लोकसभा).
- **Article 124** establishes the Supreme Court, and **Article 214** establishes a High Court for each State, as the seats of judicial power.

	USA	India
Model	**Rigid** — Constitution Arts. I, II, III	**Functional**, not watertight
Executive vs legislature	President **not** in Congress (कांग्रेस)	**Fusion**: PM + Council of Ministers **are** in Parliament (Art. **75**) and **collectively responsible** to LS (Art. **75(3)**)
Judiciary	Separate + strong review	Separate + strong review; **Art. 50** DPSP = separate judiciary from executive in the *State's public services* (magisterial/executive courts story) — **not** the whole SOP doctrine
Basic Structure?	Entrenched by difficult amendment	SOP is a **Basic Structure** feature (*Kesavananda* line / *Indira Gandhi* **1975**)

- In *Ram Jawaya Kapur* (**1955**), the Supreme Court held that the Indian Constitution does **not** recognise separation of powers in the American **rigid** sense. Functions are **differentiated**, but some overlap between organs is expected.
- The same case also held that the executive can act without a prior law, **unless** a law is specifically required for that action — a cousin of the Rule-of-Law idea.
- In *Indira Nehru Gandhi v Raj Narain* (**1975**), the Court held that Parliament cannot, by a constitutional amendment, take an **election dispute** away from the courts and decide it itself. This case treats separation of powers and free and fair elections as part of the Basic Structure.
- Under **Articles 122 and 212**, courts cannot inquire into the *proceedings* of Parliament or a State legislature — this is a **check running the other way**, from the legislature onto the judiciary.
- **Article 361** gives the President and Governors immunity from court proceedings for their official acts.

Overlap that is *meant* to exist (not a repeal of SOP)

- Under **Articles 123 and 213**, the executive may use a **temporary** legislative power to issue ordinances; an ordinance must be laid before the House and lapses without approval within six weeks of reassembly.
- In delegated legislation, Parliament sets the policy and the executive fills in the detail; if delegation is excessive, courts can strike it down.
- Tribunals under **Articles 323A and 323B** were meant to supplement, not substitute, the High Courts — in *L. Chandra Kumar* (एल चंद्र), the Supreme Court held that the writ jurisdiction of the High Courts under **Articles 226/227** must survive.
- The dominance of the Lok Sabha over Money Bills is an **internal** hierarchy within the legislature, not the creation of a fourth organ.

> **Logic:** India **has** SOP — **functional**, not US rigidity. Art. 50 is a **DPSP** (राज्य के नीति निदेशक तत्व), not a FR, and it is **not** a complete SOP clause.

Checks and Balances

Each organ can restrain the others. Separation without teeth is a poster. Checks **complement** SOP; they are not a fourth organ.

- The **judiciary checks the legislature and executive** through **judicial review** of statutes and executive orders, through writs under **Articles 32 and 226**, through the contempt power, and by striking down any amendment that hits the **Basic Structure**.
- The **legislature checks the executive**: a **no-confidence** (अविश्वास प्रस्ताव) motion in the Lok Sabha can bring down the Council of Ministers, and Question Hour (प्रश्न काल), committees, and cut motions (कटौती प्रस्ताव) keep the executive under scrutiny. Parliament also has an **impeachment** path against the President.
- The **legislature checks the judiciary** too: judges can be removed only by a special-majority process under **Articles 124(4)/218**, not by a simple whip; Parliament also controls the judiciary's budget and can legislate on its jurisdiction, **subject to the Basic Structure**.

- The **executive checks the legislature** through its majority control of the legislative timetable, and through **ordinances** under **Articles 123/213** — though an ordinance is **not** a private legislature: it must be laid before the House and expires **six weeks after reassembly** if not approved.
- The **executive checks the judiciary** through the appointments process (the Supreme Court Collegium is CJI plus four (चातुर्याम) senior judges; the NJAC alternative was struck down on **16 October 2015**) and through the pardoning power under **Articles 72/161**.
- **CAG, the Election Commission, UPSC, and the Finance Commission (वित्त आयोग)** are further constitutional brakes — they are **constitutional offices**, not "extra-constitutional" extras, as some options try to suggest.

Judicial review — three targets

- A **statute** can be struck under **Article 13** for violating Articles 14, 19, or 21, or for being *ultra vires* the federal distribution of powers.
- An **executive action** can be struck for denying a hearing, for mala fide exercise of power, or for want of authority — the *Maneka* / natural-justice line.
- A **constitutional amendment** can be struck only if it hits the **Basic Structure** — the line running through *Kesavananda*, *Minerva Mills*, and the NJAC case.

US origin-story: ***Marbury v Madison* (1803)** — review implied. India: review is **written** (13, 32, 226) **plus** Basic Structure. UK classic: **no** review of primary Acts.

> **Logic:** CAG/EC/UPSC are **constitutional** offices, not extra-constitutional extras. Judicial review ≠ judicial supremacy.

Judicial Supremacy · Parliamentary Sovereignty · Constitutional Supremacy

Three syllabus bullets. **One triad.** India claims the **third**.

	Parliamentary sovereignty	Judicial supremacy	Constitutional supremacy
Exhibit	Classic **UK** (Dicey)	Phrase often hung on the **US** Court	**India** (and the US, more accurately)
Last word	Parliament can make / unmake **any** law; no court strikes an Act as *ultra vires* the constitution (classic)	Court as the real sovereign	**Constitution** is the highest law; **both** Parliament and Court are under it
India?	**No.** Arts. **13, 245** ("subject to this Constitution"), **368** + Basic Structure	Review is **strong** (*Kesavananda, Minerva, NJAC*). That is still **not** a slogan that "judges are the State"	**Yes.** Written + judicial review + limited amendment

Parliamentary sovereignty — what India refused

- Under classic Dicey theory, no person or body can override an Act of the UK Parliament; a later Act simply repeals an earlier one, and courts do not strike primary legislation.

- India rejected this: Parliament is **supreme only within its own sphere**, not sovereign over the Constitution itself.
- **Article 13** and **Article 245** (which makes every law "subject to this Constitution") are the textual kill-shots against parliamentary sovereignty in India.
- *Kesavananda Bharati* (**1973**) reinforced this by putting a ceiling on the amending power itself.
- *Indira Nehru Gandhi v Raj Narain* (**1975**) struck the 39th Amendment's election clause on the same ground.
- *Minerva Mills* (**1980**) struck a further attempt to make the amending power unlimited.
- The **24th Amendment (1971)** inserted **Article 13(4)** and **Article 368(3)**, saying a constitutional amendment is **not** "law" under Article 13 — this was meant to bury *Golaknath* (गोलकनाथ 1967). *Kesavananda* still put a **Basic Structure** ceiling on Article 368.
- The **42nd Amendment (1976)** tried again through **Articles 368(4) and (5)**, saying no court could question an amendment and calling the amending power unlimited. ***Minerva Mills* struck down 368(4) and (5)**, and also cut back Article 31C's protection from *all* DPSPs to just **39(b) and 39(c)**.

Judicial supremacy — don't write it as India's official name

- What exists in India is **judicial review** (a Basic Structure item) and the Court's role as the final *interpreter* of the Constitution.
- What does **not** exist is a Dicey-style flip of "Parliament cannot bind a future Parliament" onto the Court — Parliament **can** still amend the Constitution, as long as it stays within the Basic Structure.
- The NJAC case (**2015**), which struck the 99th Amendment, is an example of the Court reviewing a **constitutional amendment** — this is still an exercise of constitutional supremacy, not a "judicial coup."
- Judicial activism or overreach (PIL, continuing mandamus (परमादेश)) is a *style* of exercising judicial review. It is **not** a third supremacy standing beside Parliament and the Court.

Constitutional supremacy — the Indian fact

- Indias in constitutional supremacy through a written Constitution, a federal distribution of powers, Fundamental Rights, an independent judiciary, and an Article **368** that grants a **power with limits**, not an unlimited one.
- A law can be void under **Article 13** for being inconsistent with Part III, or for being *ultra vires* the federal distribution of powers; a constitutional amendment can be void for destroying the Basic Structure.
- *Kesavananda Bharati* (**1973**) held that the amending power is not the power to rewrite the Constitution's identity.
- *Minerva Mills* (**1980**) held that a limited amending power, and the balance between Fundamental Rights and Directive Principles, are themselves part of the Basic Structure.
- The classic Dicey UK textbook recognises no single higher law of this kind; the US Constitution is also a constitutional-supremacy system, but the Indian Parliament finds it **easier** to amend the Constitution than the US Congress does.
- **Constituent power versus legislative power:** Article **368** is the power to *amend* the Constitution — a constituent power. Article **245** is the power to *make ordinary laws* — a legislative power, exercised "subject to this Constitution." The 24th Amendment's rule that an amendment is not "law" under

Article 13 does **not** make Article 368 Dicey-sovereign — the Basic Structure still binds constituent power.

> **Logic:** Parliamentary *form* ≠ parliamentary *sovereignty*. 368 is constituent, not Dicey-unlimited. *Kesavananda* killed that.

Preamble ideals

Justice **3** · Liberty **5** · Equality **2** · Fraternity **1**. "Federal" is **not** in the Preamble. 42nd added **Socialist + Secular**. Preamble is **not enforceable**. This half = what the ideals *mean*.

Seed: Nehru's **Objectives Resolution** (**13 Dec 1946**; adopted (अंगीकृत) **22 Jan 1947**). The Preamble is that resolution turned into a masthead. **Sovereign** was a **1950** Preamble word (not a 42nd insert). Two faces of sovereignty are below — or SSSDR is a slogan.

Welfare State

Socio-economic-justice State — opposite of a **police / laissez-faire State** (only law, order, defence, tax). A welfare State uses law to secure **socio-economic justice**.

- In the Preamble, **Justice** — social, economic, and political — is the first listed ideal, and it points straight to the welfare idea.
- **Part IV**, the Directive Principles of State Policy, is the engine of the welfare State; **Article 37** says they are not enforceable in court, but are still **fundamental in governance**.
- **Article 38** is the lead article: it directs the State to secure a social order for the welfare of the people. **Article 38(2)**, added by the **44th Amendment (1978)**, directs the State to minimise inequalities of **income, status, facilities, and opportunities**.
- In *Minerva Mills*, the Court held that the **balance between Fundamental Rights and Directive Principles**, and egalitarian goals generally, sit within the Basic Structure — so destroying this welfare identity is not something a 368 amendment can do.
- Welfare State is **not** a slogan meaning every government scheme is a Preamble clause: NFSA, RTE, and MGNREGA are ordinary **statutes**, while the Directive Principles themselves are Articles **36 to 51**.

Three DPSP study buckets (Socialist / Gandhian / Liberal-intellectual — all four listed in standard classifications) are how a **welfare State** is *instructed*, not a fourth Part of the Constitution.

> **Logic:** Welfare State ≠ 42nd invented Part IV. Part IV is **1950**. *Minerva*: you need **both** brakes (FR) and goals (DPSP).

Socialism

Democratic / mixed-economy socialism — reduce inequality, public sector where needed, **ballot + FRs** stay. Not Marxist one-party rule.

- The word "Socialist" entered the Preamble only with the **42nd Amendment (1976)** — a 2025 trap dangled it alongside Sovereign/Republic, but those two were already **1950** words.
- Even before 1976, the idea was already present in the **DPSPs** (Articles 38, 39, 41–43, 47) and in the political "socialistic pattern" line from the **Avadi session (पंगु सत्र) (1955)**, which is history colour, not a constitutional article.
- Indian socialism is **not** scientific Marxism, not a dictatorship of the proletariat, and not a constitutional command that every factory (फैक्टरी) must be nationalised.
- The **44th Amendment (1978)** took the **Right to Property** out of Part III and turned it into the legal right under **Article 300A** — a property-versus-welfare compromise, not a repeal of Articles 14/21.
- The **1991 economic reforms did not delete** "Socialist" from the Preamble.
- **Article 31C** saves certain redistributive laws giving effect to Article 39(b)/(c) from challenge under Articles 14/19; after *Minerva Mills*, this protection covers **only** 39(b)/(c), not all Directive Principles.

> **Logic:** Socialist was **not** in the 1950 Preamble. 42nd did **not** turn India into a communist State.

Secularism

The **word** is 42nd. The **code** is 1950: Arts. **25–28**. Hindi tag: **पंथनिरपेक्ष** / *Sarva Dharma Sambhava* (equal respect) — not “the State has no truck with religion at all”.

	Indian (positive / principled)	US textbook (negative / wall)
Idea	Equal **respect** and equal **freedom**; State has **no official religion**	Jefferson “wall” — State neither aids nor regulates religion
Reform	Art. **25(2)** — State **may** regulate secular activity of religious bodies and throw open Hindu institutions	Establishment clause fights State entanglement
Tax / school	Art. **27** no tax *for promotion* of a religion; Art. **28(1)** no religious instruction in wholly State-funded schools	School-prayer fights are the US paper
Other face	Art. **15** (no religious discrimination) · Arts. **29–30** (minorities)	—

- In *Kesavananda Bharati* (**1973**), the Court had already listed **secular character** as part of the Basic Structure.
- In *S.R. Bommai* (**1994**), the Court applied that fact to **politics**: a State government that uses religion as a tool of power can justify invoking **Article 356** (अनुच्छेद 356).
- India is not a theocracy, since there is no State religion; but it is also **not** "anti-religion" — that is the opposite mistake.

- **Article 44**, a Directive Principle, says the State shall endeavour to secure a Uniform Civil Code. It is a **DPSP**, **not** a Fundamental Right, and is a cousin of the secular *civil-law* idea.
- The Sabarimala controversy under **Article 25(2)** is a fight between custom and equality that combines secularism with constitutional morality — treat it as its own case, not a restacking of *Bommai*.

> **Logic:** India was secular in **scheme** from 1950 (Arts. **25–28**). The **adjective** is 1976. Indian secularism ≠ US wall. *Kesavananda* listed secular character; *Bommai* applied it to **356**.

Democracy

Government by the people — Preamble "We, the People". Government derives title from **consent**, not conquest. Working model: **representative + parliamentary**.

- **Article 326** guarantees universal adult franchise; the voting (गणपूर्ति) age was lowered to **18** by the **61st Amendment**, in force from **28 March 1989**.
- In *Indira Nehru Gandhi v Raj Narain* (**1975**), the Supreme Court held that **free and fair elections**, and the Rule of Law, are part of the Basic Structure and cannot be amended away.
- Ambedkar warned that political democracy — **one person, one vote, one value** — will not last without **social** democracy; that is why Justice, Equality, and Fraternity sit alongside Liberty in the same Preamble.
- India has two sovereignties: **political** sovereignty rests with the people, while **legal** sovereignty rests with the **Constitution** (in the classic UK model, legal sovereignty instead rests with Parliament).
- The **73rd and 74th Amendments** added local self-government as a **third tier** of democracy, with elected bodies at the gram, block, and district levels (11th Schedule (11वीं), 29 subjects) and in towns (12th Schedule (12वीं), 18 subjects).
- India follows the **parliamentary form** of government, on the UK model of a Cabinet drawn from and responsible to the House. Democracy is the *principle* of who governs; republic (below) is about *what the Head of State is*.

Sovereign (not a separate T22 bullet — finishes SSSDR)

- **Internal sovereignty** means India is supreme *inside* its own territory, with no rival legal centre — the States are not independent republics, and Article **1** describes India as a Union of States.
- **External sovereignty** means India answers to no foreign master; membership of the UN or the Commonwealth does **not** compromise this sovereignty.
- "We, the People," in the Preamble's opening words, expresses **popular** or political sovereignty.
- The 2025 paper dangled **Sovereign** and **Republic** as if they were 42nd Amendment inserts — both were already **1950** Preamble words.

> **Logic:** Democracy ≠ whatever the majority wants today (*Navtej*: majority ≠ constitutional morality). Democracy answers *who* governs; republic answers *what the Head is*.

Republic

Elected Head of State, not hereditary (गैर-वंशानुगत). Union: President, Art. **54** electoral college (elected MPs + elected MLAs; nominated out; STV).

- Public offices are, in principle, **open** to any citizen, not reserved for a hereditary nobility.
- India became a republic on **26 January 1950**, celebrated as Republic Day; the Constitution itself was **adopted** on **26 November 1949**.
- The UK is a **democracy** with a **monarch**, whereas India is a **democratic republic**.
- Democracy answers *who* governs; republic answers *what the Head of State is*.

> **Logic:** Republic was **not** added by the 42nd. It was there in 1950. 2025 paper dangled it next to Socialist/Secular.

Justice — Social, Economic, Political

Three kinds of Justice — social, economic, political (that is the "3" in 3-5-2-1). Preamble puts Justice **first** among the four big ideals. Art. **38** restates all three inside Part IV.

- **Social justice** means no hierarchy of caste or status, and dignity in society — carried by Articles **15** and **17** (abolition of untouchability) and Article **46** (protection of weaker sections).
- **Economic justice** means secure livelihood, no concentration of wealth, and equal pay — carried by Articles **38** and **39** (especially 39(b), (c), and (d)) and Articles **41–43**.
- **Political justice** means equal political rights, adult franchise, and no communal electorates — carried by Articles **325–326** and the idea of free and fair elections.

France's revolutionary (क्रांतिकारी) triad was **Liberty, Equality, Fraternity**. India **prefixes Justice** (social revolution / Austin's seamless web). Do not write "Indian Preamble = French triad only".

One person, one vote, one value is the political-justice slogan. Social/economic justice is why a *formal* ballot is not the whole Constitution.

> **Logic:** India prefixes **Justice** to the French triad. Political justice ≠ the whole Constitution.

Liberty — Thought, Expression, Belief, Faith, Worship

Five Preamble liberties.Do not mix with Art. **19(1)**'s **six** freedoms. Write the five in order: Thought · Expression · Belief · Faith · Worship.

- **Thought** and **expression** are carried by Article **19(1)(a)** for citizens, and by the dignity strand of Article **21** for everyone.
- **Belief**, **faith**, and **worship** are carried by Articles **25–28**, available to all persons, subject to limits.
- None of these liberties are absolute (निरपेक्ष): Article **19(2)** allows reasonable restrictions on speech, and Article **25** allows restrictions in the interest of public order, morality, and health.

- The **16th Amendment (1963)** added "sovereignty and **integrity** of India" as a restriction ground on Article **19(1)(a)(b)(c)** and into the Third-Schedule oaths — so liberty is **bounded by unity** even before the Preamble printed the word "integrity."
- In *Shreya Singhal* (2015), the Court struck down Section 66A of the IT Act; liberty is a Preamble ideal that Part III's Fundamental Rights actually operate.
- Liberty of **person** or body, under Article **21** (as in *Gopalan* and *Maneka*), is **not** one of the Preamble's five liberties. The six Article **19** freedoms — speech, assembly, association, movement, residence, and profession — are also a **different** list; "Thought" does not appear anywhere as a numbered 19(1) clause.

> **Logic:** Preamble liberty = **5** (thought…worship). Art. 19 = **6** different list. Preamble does **not** list personal liberty (that is Art. **21**).

Equality — Status and Opportunity

Two Preamble equalities — status and opportunity. Not five. Not equality of outcome.

- **Equality of status** is carried by Article **14** (available to any person) along with Articles **15** and **17**.
- **Equality of opportunity** is carried by Article **16**, which covers public employment for **citizens** only.
- Article 14 combines Dicey's equality before law with the US idea of equal protection: it permits reasonable **classification**, but forbids **class legislation**.
- Reservations under Articles 15(4)/15(5)/16(4), and the EWS quota under 16(6), are *how* equality of opportunity is made real in practice — they are not a repeal of equality.
- A 2024 matching trap turns on this: Article 14 covers citizens **and** non-citizens, while Article 16 covers **citizens only** — so "equality of opportunity" in the Preamble maps to Article 16.

> **Logic:** Equality in the Preamble has **two** components. Art. **14** = any person; Art. **16** = citizens only.

Fraternity and Dignity of the Individual

One Preamble ideal, two promises — fraternity **assuring** the dignity of the individual **and** the unity and integrity of the Nation.

- In his closing speech to the Constituent Assembly, Ambedkar warned that without **fraternity**, liberty and equality are only "a coat of paint" — brotherhood is what makes the other two live in practice.
- **Dignity** has been read into Article **21** in cases like *Francis Coralie* and *Puttaswamy*; it is both a **Preamble promise** and an Article 21 holding.
- Its duty cousin is **Article 51A(e)**, which asks citizens to promote harmony and the spirit of common brotherhood, alongside **51A(a)**, which asks them to cherish the values of the freedom struggle.

> **Logic:** Fraternity does **not** have three numbered types like Justice. It is **1** Preamble ideal.

Unity and Integrity of the Nation

Hold-together of the Union — 42nd inserted **integrity** into the fraternity clause (with Socialist and Secular). The *idea* is older than 1976.

- After the China war and secession slogans of the early 1960s, the **16th Amendment (1963)** wrote "sovereignty and **integrity** of India" into the restriction grounds of Article **19(2)/(3)/(4)**, and into the Third-Schedule oaths — so liberty was *expressly* bounded by integrity **before** the Preamble even printed the word.
- **Article 1** describes India as a "Union of States," not a "federation" — the Preamble itself never uses the word "federal." **Article 51A(c)** makes it a citizen's duty to uphold the sovereignty, unity, and integrity of India, and single citizenship is one of the unity tools that supports this.
- Unity-and-integrity works through a combination of a **Preamble ideal**, a **Fundamental Duty**, and a **restriction ground** — it is not a fourth Emergency article, even during a secession-related crisis.

> **Logic:** "Federal" is **not** in the Preamble. Integrity in the Preamble is **42nd**; in Art. **19** and the oaths it is already **16th Amd 1963**.

Mains link (one frame)

India wrote a **higher law** and then spent fifty years deciding how high. **Political sovereignty** = the people; **legal sovereignty** = the Constitution. **368** is constituent, not Dicey-unlimited. The Preamble *names* (42nd) what Parts III–IV already *did*: **welfare (Art. 38)**, **democratic socialism**, **positive secularism** (*Kesavananda* list → *Bommai* 356). Close with: **Preamble liberty ≠ Art. 21 person ≠ Art. 19's six**; **Justice prefixes the French triad**; **Republic / Sovereign ≠ 42nd inserts**.